never reflected in these ideologies borrowed from elsewhere and so they utterly failed to touch the chords of our national being.'

Having rejected its premise, Upadhyaya was scathing about the Constitution's drafting and adoption: a nation, he argued, 'is not like a club which can be started or dissolved. A nation is not created by some crores of people passing a resolution and defining a common code of behaviour binding on all its members. A certain mass of people emerges with an inherent motivation. It is,' he added, using a Hindu analogy, 'like the soul adopting the medium of the body.'[51]

In the classic Hindu formula, a king must function according to his *raj dharma*, or code of governance, which is not defined by him, but is laid down for him by selfless unattached *rishis*. In contemporary language, Upadhyaya saw a Hindu king almost as one might a chief executive receiving his authority from the shareholders (in this case, the people), mediated through the vision of the board (in this case, the wisdom of the sages). Observing that the Constitution requires that any person holding a position of power has to take a pledge of loyalty to that Constitution, Upadhyaya asks three questions: were the people who framed the Constitution endowed with qualities of selflessness, an intense desire for public service and a deep knowledge of the rules of *dharma* as the rishis were? Or did they formulate this *Smriti* of a free India under the influence of the unsteady circumstances prevailing at the time? Did these people possess originality of thought or did they have a tendency to primarily imitate others?

Upadhyaya's implicit answers to these questions were in the negative: the Constitution-makers were not figures imbued with selflessness and *dharma*, they were overly in thrall to the turbulent politics of that era, and their minds had been colonised by Western ideas. The founding fathers of the Republic of India were largely Anglophile Indians schooled in Western systems of thought; their work revealed no Indianness, no *Bharatiyata*. The Constitution, therefore, was to him a flawed document, one incapable of guiding India towards the path of *raj dharma*. In fact it condemned Hindus to slavery: 'Self-rule and independence are considered to be synonyms. A deeper thinking will bring home to us the fact that even in a free country, the nation can